

25VECV01365 25VECV01365

County: los-angeles

Division: Civil Law and Motion

Department: U

Hearing date: 2026-08-11

Motion: PLAINTIFF'S MOTION FOR ATTORNEYS' FEES

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Case Number: 25VECV01365 Hearing Date: August 11, 2026 Dept: U

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

MICHAEL AMINI, an individual,

Plaintiff,

vs.

MERCEDES-BENZ USA, LLC, a Delaware limited liability company; and DOES 1-10, inclusive,

Defendants.

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CASE NO: 25VECV01365

[TENTATIVE] ORDER RE: PLAINTIFF'S MOTION FOR ATTORNEYS' FEES

Dept. U

8:30 a.m.

August 11, 2026

BACKGROUND

This case is a lemon law action filed by Plaintiff Michael Amini against Defendants Mercedes-Benz USA, LLC ("MBUSA"); Los Angeles-M, Inc. d/b/a Keyes European ("Keyes"); and Trophy Automotive Dealer Group, LLC d/b/a Mercedes-Benz of Encino ("Trophy").

On March 11, 2025, Plaintiff filed his original complaint against MBUSA.

On June 5, 2025, Plaintiff filed his first amended complaint against MBUSA, Keyes, and Trophy.

On July 11, 2025, Plaintiff dismissed Keyes and Trophy as defendants from the case.

On November 24, 2025, Plaintiff filed his notice of settlement of the entire case.

On April 10, 2026, Plaintiff filed his motion for attorneys' fees.

On July 29, 2026, MBUSA filed its opposition brief.

On August 4, 2026, Plaintiff filed his reply brief.

RULING

Plaintiff's motion for attorneys' fees is granted in the reduced total amount of \$65,320.25. In the absence of a motion to tax costs, Plaintiff may recover his costs as claimed.

LEGAL STANDARD

If a buyer-plaintiff prevails in an action under Civil Code section 1794, "the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." Civ. Code, § 1794 (d).

DISCUSSION

125.95 hours of attorney time and 23.8 hours of paralegal time are reasonable for Plaintiff's counsel to have spent working on this case.

The trial court has an obligation to award only those attorneys' fees that are reasonable. See *PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1096 (PLCM Group); see also *Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132 (Ketchum).

Plaintiff seeks an award of attorneys' fees in the total amount of \$82,244.87, representing 159.95 hours of attorney time at rates between \$400.00/hour and \$595.00/hour, plus 23.8 paralegal hours at a rate of \$125.00/hour, plus a 1.25 multiplier. This case involved no motion practice and no trial preparation. The total number of hours claimed in the billing records attached to Plaintiff's motion is excessive. Specifically:

Counsel claims several hours for drafting form documents and basic pleadings. The Court will strike 22.0 total attorney hours from Plaintiff's request for attorneys' fees related to drafting form documents and basic pleadings.

Counsel claims dozens of .1-hour increments for unspecified "correspondence" and for checking the docket. The Court will strike 7.0 total attorney hours from Plaintiff's request for attorneys' fees related to unspecified "correspondence" and to checking the docket.

Counsel claims more than 11.0 hours for work on the instant motion for attorneys' fees. This is excessive. The Court will strike 5.0 total attorney hours from Plaintiff's request for attorneys' fees related to the instant motion for attorneys' fees.

In sum, many of Plaintiff's specific time allocations are for routine lemon law discovery practice that should not take counsel such large amounts of hours to complete. Plaintiff's counsel appears to seek compensation at high rates for work that has been done hundreds of times previously and which should proceed in a fraction of the hours that are being claimed. Ultimately, the Court will strike 34.0 hours from Plaintiff's counsel time records. (22.0 + 7.0 + 5.0 = 34.0.) Plaintiff will be allowed to recover 125.95 hours of attorney time for work completed on this case. (159.95 – 34.0 = 125.95.) This award is inclusive of counsel's work on the instant motion for attorneys' fees and time to attend the hearing thereon.

The Court disagrees with MBUSA that any of the line-item time charges for paralegal work are unreasonable. Plaintiff may recover the entire 23.8 hours expended by paralegals.

Plaintiff will be awarded \$65,320.25 in attorneys' fees for work completed on this case. (125.95 attorney hours at \$495.00/hour, plus 23.8 paralegal hours at \$125.00/hour.)

The trial court awards reasonable attorneys' fees according to the lodestar. See *PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1096; see also *Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132.

Plaintiff's motion states that attorneys who worked on this case bill at rates between \$400.00/hour and \$595.00/hour. The Court has reviewed and considered the parties' arguments regarding setting reasonable rates in this case. \$495.00 is a reasonable hourly rate for attorneys in this matter given Plaintiff's counsel's experience. The Court disagrees with Plaintiff that the fact that this case was taken on contingency warrants a greater rate or a fee multiplier. The contingency risk is built into a \$495.00/hour rate. \$125.00/hour is a reasonable rate for the paralegal who worked on this case.

In sum, the Court will award Plaintiff his reasonable attorneys' fees for counsel's work on this case up through and including the instant motion for attorneys' fees and the hearing thereon in the total amount of \$65,320.25. (125.95 attorney hours at \$495.00/hour, plus 23.8 paralegal hours at \$125.00/hour = \$65,320.25.)

There is no motion to tax costs before the Court at this time.

MBUSA asserts that Plaintiff's claimed costs are excessive and indicates that it will file a motion to tax costs "at a later date." (Opposition, p. 9:3.) No such motion to tax costs has been filed, thus the Court need not consider taxing costs at this time.

CONCLUSION

Plaintiff Michael Amini's motion for attorneys' fees is GRANTED in the reduced total amount of \$65,320.25.

In the absence of a motion to tax costs, Plaintiff Michael Amini may recover his costs as claimed.

Plaintiff Michael Amini is ORDERED to give notice.

DATED: August 11, 2026

Lee S. Arian

Judge of the Superior Court